

**SOLE-SOURCE JUSTIFICATION FOR
ACQUISITIONS UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

Pursuant to the Federal Acquisition Regulation (FAR) 13.106-1(b)(1)(i) and 13.501(a)(1), and the Federal Bureau of Prisons (BOP) has determined that there is only one source reasonably available. The following is supporting documentation in accordance with FAR subpart 6.303-2.

1. Identification of the agency and contracting activity, and specific identification of the document as a “Sole Source Justification Under Simplified Procedures for Certain Commercial Items:

Department of Justice
Federal Bureau of Prisons
United States Penitentiary McCreary
330 Federal Way
Pine Knot, KY 42635

2. Nature and/or Description of Action being Approved:

This action is for the acquisition of a new Auger Monster system for wastewater treatment for the Federal Bureau of Prisons, United States Penitentiary (USP) McCreary located in Pine Knot, KY.

3. Description of Supplies or Services Required to Meet the Agency Needs:

The Auger System provides USP McCreary with the ability to prevent pollution to the city's water system. preventing drainage clogs by grinding up any items or debris that may harm or hamper the smooth flow of water from the institutions water system through the city's water system. JWC Environmental is the only company that provides the Auger Monster system for wastewater treatment to replace the existing failing system. The estimated contract award for the labor and equipment is \$175,000.00. JWC is the manufacturer of the Auger Monster system but doesn't install the equipment. Their authorized representative, whom JWC will only sell their equipment to, for Kentucky is Henry P. Thompson Company. Henry P. Thompson Company will purchase the equipment and coordinate the installation on-site. Once the installation is complete HP Thompson will certify the equipment and installation is operational and conduct all necessary training.

4. Statutory Authority Permitting Other Than Full and Open Competition:

The statutory authority permitting this action in under 41 U.S.C. 1901 and FAR 13.106-1(b)(1)(i). When acquiring goods or services, circumstances may dictate that only one supplier can furnish the goods or service based on the footprint of the equipment already on-site.

5. Determination that Proposed Contractor's Unique Qualifications or the Nature of the Acquisition Requires Use of the Authority Cited:

The existing Auger Monster system for wastewater treatment was installed in 2003 when the USP was constructed. Given that it is over 21 years old, it is failing and the parts to repair it are obsolete. As it stands, the existing lift system was built in trenches within the concrete of the facility. The new Auger Muffin Monster system will be installed within the existing lift station. The Auger Muffin Monster is an integral part of the system in the process of processing wastewater and debris. Failure to procure a new Auger Monster system would negatively affect normal institutional operations and potentially create environmental concerns. These concerns would potentially affect USP McCreary with non-compliance of local ordinances and policies. Non-compliance opens potential violations.

Due to agency mission, the government cannot have this system out of service for an extended amount of time. The new system presents the best option with regards to time and cost, in addition to mission fulfillment.

6. Efforts Made to Solicit from as Many Sources as Practicable Including Whether or Not a Notice Was or Will be Publicized as Required by FAR Part 5.2:

Market Research into the Auger Monster system revealed that JWC Environmental is the manufacturer and owner of the Auger Monster System. They hold numerous patents and trademarks on this product. Market research also revealed JWC does not perform installation. Research efforts also show their authorized representative in the Kentucky area for installation services is Henry P. Thompson Company. Due to these facts, there are no other sources in the area capable of providing the system and installation required. In accordance with FAR 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements due to the fact that the lift station design is constructed for an Auger Monster system and going to another source would completely replace the lift station design at a substantial cost to the government. FAR 13.501(a)(1)(iii), the justification will be publicly available and posted on the Government Point of Entry (www.SAM.gov).

7. Contracting Officer's Determination that the Cost to the Government Will be Fair and Reasonable:

The Contracting Officer (CO) has conducted online research and examined historical data and previously paid prices of similar purchases of this type, as well as the Independent Government Estimate. There are many parts to the Auger Monster System, including: Grinder, Fine screen, Auger Rotar, Wash zones and Compactor.

According to market research sources, the Lift Station Grinder costs around \$100,000 and the Compactor around \$50,000. The Rotating Auger, the Wash Zones and Fine Screen cost an additional \$25,000 bringing the estimated total for the equipment to \$175,000. As an agency, BOP has replaced many parts at various facilities, and costs fluctuate depending on geographic location and situational need. Based on the information stated above, the Contracting Officer anticipates the price will be fair and reasonable.

8. Description of the Market Survey Conducted:

Acquisition history on the local and national level, has led the contracting officer to the conclusion that JWC Environmental is the only source for the asset being sought. Henry P. Thompson Co. located in Milford Ohio is the company representative for JWC that will receive the equipment then perform the installation, certification and training.

9. Any other Facts Supporting the Use of Other Than Full and Open Competition:

N/A

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition:

JWC Environment will only sell their equipment through their authorized representative for the Kentucky market to Henry P. Thompson Co. The authorized representative possesses the capability and will perform installation services. Market research has confirmed JWC Environmental and Henry P. Thompson is located at:

JWC Environmental 2600 S. Gamsey Street Santa Ana, CA 92707

Henry P. Thompson Co. 1046 Techne Center Dr. Milford, OH 45150

11. A statement of any actions the agency will take to remove or overcome any future barriers to competition.

In this instance, JWC Environmental, and Henry P. Thompson Co., are the only sources available for the asset being sought and the installation services. In order to promote competition, Bureau of Prisons will periodically conduct additional market research for changes in the industry for competition opportunities.

TECHNICAL AND REQUIREMENTS CERTIFICATION:

I certify that the facts and representations under my cognizance, which are included in this justification and form a basis for this justification, are complete and accurate to the best of my knowledge.

Ryan Worley
Ryan Worley, Engineering Technician
USP McCreary

2/25/2025
Date

Benjamin Taylor
Ben Taylor, Facilities Manager
USP McCreary

2/25/2025
Date

CONTRACTING OFFICER'S CERTIFICATION AND APPROVAL:

I certify that statements checked, and information provided above, are complete and correct to the best of my knowledge. In accordance with FAR 13.106-1(b)(1), the facts of this acquisition preclude the use of full and open competition.

Candi Smart
Candi Smart, Contracting Officer
Field Acquisition Office

03/13/2025
Date

Darrell McKeel
Darrell McKeel, Contracting Officer
Field Acquisition Office

03/12/2025
Date